

FORMAL CIVIL RIGHTS COMPLAINT: TITLE IX & SECTION 504

TO:

U.S. Department of Education
Office for Civil Rights (OCR) – Chicago Office

C. Kluczynski Federal Building

37th Floor

Chicago, IL 60604

Email

COMPLAINANT:

NE

Prior Lake, MN 55372

RESPONDENT INSTITUTION:

Prior Lake-Savage Area Schools (ISD 719)

Michael Thomas, Superintendent

SE

Prior Lake, MN 55372

I. INTRODUCTION AND JURISDICTION

This is a formal complaint alleging systemic and ongoing violations of Title IX of the Education Amendments of 1972 (34 C.F.R. Part 106) and Section 504 of the Rehabilitation Act of 1973 by Prior Lake-Savage Area Schools (the "District"). The District exhibited deliberate indifference to a severe physical weapons assault and sexual harassment, maintained unlawful barriers to reporting, enforced a structural conflict of interest in its grievance process, and executed a constructive exclusion that denied the student a Free Appropriate Public Education (FAPE). This complaint is timely as it alleges a continuing violation and continuing constructive exclusion, with the District's final administrative refusal to amend discriminatory records and afford appeal rights occurring on April 22, 2026.

II. RESPONDENT AND RESPONSIBLE AUTHORITY (SUPERINTENDENT MICHAEL THOMAS)

Under Title IX, a recipient institution is liable for deliberate indifference when an "appropriate official" with the authority to institute corrective measures has actual knowledge of the violations (34 C.F.R. § 106.44).

Superintendent Michael Thomas serves as the chief executive officer and statutory Responsible Authority for the District. As established by contemporaneous written records (Exhibit 5), Superintendent Thomas was the direct recipient of communications detailing the weapons assault and the failure of District policy on December 13, 2024. Furthermore, Superintendent Thomas and the Board of Education were persistently copied on communications detailing the blocked Title IX reporting channels, the refusal of safety accommodations, and the subsequent spoliation of evidence.

Because Superintendent Thomas possessed direct, actual knowledge of the hostile environment and the Title IX Coordinator's procedural failures, and willfully refused to exercise his authority to institute corrective measures, his inaction establishes institutional deliberate indifference. He is named herein as the primary Responsible Authority overseeing these ongoing civil rights violations.

III. ALLEGATIONS AND STATUTORY VIOLATIONS

COUNT I: Title IX Procedural Failures and Barriers to Reporting (34 C.F.R. § 106.8)

The District maintained technological and administrative barriers that actively suppressed Title IX reporting. On November 1, 2024, the Complainant submitted a formal Title IX complaint regarding sexual harassment and assault. The District's internal IT security filters automatically quarantined the report due to the inclusion of necessary keywords describing the assault. The District failed to notify the Complainant of this quarantine, acting as an unlawful technological barrier to accessing the grievance process (Exhibit 3).

COUNT II: Title IX Structural Conflict of Interest (34 C.F.R. § 106.45(b)(1)(iii))

Title IX mandates an objective grievance process free from conflicts of interest. The District permitted Emily Herman to simultaneously operate as the District Title IX Coordinator, the Principal Investigator for this specific complaint, and the ultimate Decision-Maker who dismissed it. This structural conflict of interest inherently biased the proceedings and deprived the Complainant of an impartial resolution.

COUNT III: Failure to Provide Notice of Appeal Rights (34 C.F.R. § 106.45(b)(8))

On March 13, 2025, the District unilaterally dismissed the Title IX complaint. The District willfully failed to provide the Complainant with the federally mandated notice of their right to appeal the dismissal. When formally notified of this statutory failure on May 6, 2025, the District refused to cure the error or provide an appeal process, executing a final denial of due process rights.

COUNT IV: Constructive Exclusion and Denial of FAPE (Section 504 / Title II)

Following a severe physical assault where the student was struck multiple times with a weapon (a chair), the District refused to enforce its own safety policies. The Complainant requested trauma-informed accommodations and a basic safety plan to ensure the student's physical safety upon return.

The District, advised by external legal counsel, explicitly conditioned the discussion and implementation of safety accommodations on the student first returning to the unregulated, hostile environment where the assault occurred (Exhibit 4). By forcing the parents to choose between subjecting their child to an imminent risk of physical harm or keeping her home, the District manufactured a constructive exclusion, resulting in a total deprivation of FAPE.

IV. RELIEF SOUGHT

The Complainant respectfully requests that the Office for Civil Rights formally investigate Prior Lake-Savage Area Schools and Superintendent Michael Thomas for systemic deliberate indifference. Specifically, the Complainant seeks:

1. **Federal Monitoring:** Placement of the District under a formal Resolution Agreement and OCR monitoring to overhaul its Title IX grievance procedures, eliminate IT reporting barriers, and remove structural conflicts of interest.
2. **Equitable Financial Reimbursement:** An order requiring the District to provide full equitable reimbursement for the \$5,000 in out-of-pocket tuition for a unilateral private placement, as well as all transportation/mileage costs incurred. This placement was an emergency necessity due to the physical and serious emotional harm threatened by the District's constructive exclusion and refusal to provide a safe learning environment.
3. **Official Finding of Deliberate Indifference:** A formal finding that the District's Board of Education and its designated Responsible Authority, Superintendent Michael Thomas, possessed actual knowledge of the Title IX failures and the constructive exclusion, and responded with deliberate indifference.

Respectfully Submitted,

Casey C. Brown

Parent of Student

(Exhibits 1-5 Attached)

Itemized Redaction List

Bates/Page	Line	Redaction reason
Sean_OBrien_2026-05-04_CivilRights-p00	6	Redacted to protect personal privacy.
Sean_OBrien_2026-05-04_CivilRights-p00	7	Redacted to protect personal privacy.
Sean_OBrien_2026-05-04_CivilRights-p00	9	Redacted to protect personal privacy.
Sean_OBrien_2026-05-04_CivilRights-p00	11	Redacted to protect personal privacy.
Sean_OBrien_2026-05-04_CivilRights-p00	12	Redacted to protect personal privacy.
Sean_OBrien_2026-05-04_CivilRights-p00	14	Redacted to protect personal privacy.
Sean_OBrien_2026-05-04_CivilRights-p00	18	Redacted to protect personal privacy.
Sean_OBrien_2026-05-04_CivilRights-p00	34	Redacted to protect personal privacy.
Sean_OBrien_2026-05-04_CivilRights-p00	35	Redacted to protect personal privacy.